

Superior Court of the State of California
County of Orange

TENTATIVE RULINGS
DEPARTMENT C27
JUDGE BRADLEY ERDOSI

LAW AND MOTION IS HEARD ON MONDAYS AT 2:00 P.M.

Tentative Rulings: The Court endeavors to post tentative rulings on the Court's website by 10:00 a.m. on the date of the afternoon hearing. However, ongoing proceedings or other pressing matters may delay the posting of tentative rulings. Additionally, tentative rulings may not be posted in every case. Please **do not** call the department for tentative rulings if tentative rulings have not been posted. The Court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on Tentative Rulings: If all counsel intend to submit on the Court's tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5227. Please do not call the department unless **all** parties submit on the tentative ruling. If all sides submit on the Court's tentative ruling and so advise the Court, the tentative ruling will become the Court's final ruling and the prevailing party is ordered to give notice of the ruling and prepare an order for the Court's signature, if appropriate, under Cal. R. Ct. 3.1312.

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Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also may make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

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Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings.

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TENTATIVE RULINGS

August 17, 2026

	Case Name	Tentative
101	2024-01385241 Alvarez vs. American Honda Motor Company, Inc.	Motion for Summary Judgment/Adjudication Defendant American Honda Motor Co., Inc. (“Defendant”) seeks summary adjudication on five issues. Plaintiff’s unopposed requests for the Court to take judicial notice of documents are granted. (Evid. Code, § 452, subd. (c) and (h).) However, the Court may not judicially notice the truth of its contents. (<i>Ragland v. U.S. Bank National Assn.</i> (2012) 209 Cal.App.4th 182, 193.) The Court declines to consider Defendant’s declaration submitted in support of Defendant’s reply. (Code Civ. Proc., § 437c, subd. (b)(4).) The Court notes Defendant did not repeat the issues as stated in the notice verbatim in the separate statement. (Cal. Rules of Ct., Rule 3.1350(b).) Plaintiff did not oppose the motion on this ground. Accordingly, the Court exercises its discretion and considers the merits of the motion. In both summary judgment and summary adjudication proceedings, the pleadings determine the scope of the relevant issues. (<i>Port Medical Wellness, Inc. v. Connecticut General Life Ins. Co.</i> (2018) 24 Cal.App.5th 153, 169.) The standard governing motions for summary judgment and summary adjudication is settled. “[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law.” (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850.) A “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact. . . .” (<i>Ibid.</i>) “A prima facie showing is one that is sufficient to support the position of the party in question.” (<i>Id.</i> at p. 851.) “A court identifies the issues framed by the pleadings, determines whether the moving party’s showing has established facts which negate the opponent’s claim and justify a judgment in the moving party’s favor, and if the summary judgment motion is meritorious on its face, the court will look to whether the opposition demonstrates there are triable, material factual issues.” (<i>Clark v. Baxter Healthcare Corp.</i> (2000) 83 Cal.App.4th 1048, 1054.) The opposing party must show by reference to specific facts the existence of a triable issue as to that cause of action. (<i>Aguilar v. Atlantic Richfield Co., supra</i> , 25 Cal.4th at p. 850.) “A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” (Code Civ. Proc., § 437c, subd. (f)(1).)

A cause of action cannot be established if the undisputed facts presented by the defendant prove the contrary of the plaintiff's allegations as a matter of law. (*Brantley v. Pisaro* (1996) 42 Cal.App.4th 1591, 1597.) Alternatively, a moving defendant can show that a cause of action cannot be established by submitting evidence, such as discovery admissions and responses, that plaintiff does not have and cannot reasonably obtain evidence to establish an essential element of his cause of action. (*Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at pp. 854-855; *Union Bank v. Superior Court* (1995) 31 Cal.App.4th 573, 590 [finding moving defendant may show plaintiff's lack of evidence by factually devoid discovery responses after plaintiff has had adequate opportunity for discovery]; *see Sheiding v. Dinwiddie Constr. Co.* (1999) 69 Cal.App.4th 64, 80-81 [finding Union Bank rule only applies where discovery requests are broad enough to elicit all such information].)

Once a defendant meets its prima facie showing, the burden shifts to the plaintiff to show by reference to specific facts the existence of a triable issue as to that affirmative defense or cause of action. (*Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at p. 850.) To meet this burden, the plaintiff must present substantial and admissible evidence creating a triable issue. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 163.) Theoretical, imaginative, or speculative submissions are insufficient to stave off summary judgment. (*Doe v. Salesian Society* (2008) 159 Cal.App.4th 474, 481; *Bushling v. Fremont Med. Center* (2004) 117 Cal.App.4th 493, 510.)

The motion shall be supported by affidavits, declarations, admissions, answers to interrogatories, depositions, and matters of which judicial notice shall or may be taken." (Code Civ. Proc., § 437c, subd. (b)(1).)

The motion and opposition must be accompanied by a separate statement. (Cal. Rules of Ct., Rule 3.1350, subd. (c)(2), (d), (e)(2), (f), and (g); Code Civ. Proc. §437c, subd. (b).) The separate statement must set forth "plainly and concisely all material facts that the moving party contends are undisputed. Each of the material facts stated shall be followed by a reference to the supporting evidence. The failure to comply with this requirement of a separate statement may in the court's discretion constitute a sufficient ground for denying the motion." (Code Civ. Proc., § 437c, subd. (b)(1).) The format of the separate statement must comply with the requirements set forth in California Rules of Court, Rule 3.1350, subd. (d), (f), and (h).

Issue 1: Second Cause of Action – Violation of Civil Code § 1793.2(b) (30-Day Repair Requirement): Fails as a matter of law because all warranty repairs to the 2018 Honda Accord (VIN 1HGCV1F37JA157818) were completed in fewer than 30 days in total.

"Where those service and repair facilities are maintained in this state and service or repair of the goods is necessary because they do not conform with the applicable express warranties, service and repair shall be commenced within a reasonable time by the manufacturer or its representative in this state. Unless the buyer agrees in writing to the contrary, the goods shall be serviced or repaired so as to conform to the applicable warranties within 30 days. Delay caused by conditions beyond the control of the manufacturer or its representatives shall serve to extend this 30-day requirement. Where delay arises, conforming goods shall be tendered as soon as possible following termination of the condition giving rise to the delay." (Civ. Code, § 1793.2, subd. (b).)

Section 1793.2 subdivision (b) can be violated either when a defendant (1) fails to commence repairs within a reasonable time, or (2) fails to conform the vehicle to warranty

within 30 days (the “30-day rule”). (*Kirzhner v. Mercedes-Benz USA, LLC* (2020) 9 Cal. 5th 966, 984.)

Plaintiff’s Complaint alleges both that Defendant “failed to commence the service or repairs within a reasonable time and failed to service or repair the Vehicle to conform to the applicable warranties within 30 days, in violation of Civil Code section 1793.2, subdivision (b).” (Complaint, ¶ 43.) Defendant did not meet Defendant’s initial burden to show service and/or repair were commenced within a reasonable time.

Because Defendant did not meet its initial burden, the burden does not shift to Plaintiff to raise a triable issue of material fact. (*Consumer Cause, Inc. v. SmileCare* (2001) 91 Cal.App.4th 454, 468.)

Accordingly, the motion is denied as to this issue. (Code Civ. Proc., § 437c, subd. (f)(1).)

Issue 2: Third Cause of Action – Violation of Civil Code § 1793.2(a)(3): Fails as a matter of law because AHM provided all authorized dealerships with the necessary technical literature, service procedures, and parts to perform any required warranty repairs.

“Every manufacturer of consumer goods sold in this state and for which the manufacturer has made an express warranty shall...Make available to authorized service and repair facilities sufficient service literature and replacement parts to effect repairs during the express warranty period.” (Civ. Code, § 1793.2, subd. (a)(3).)

Defendant met its initial burden to show Defendant made available sufficient service literature and replacement parts to effect repairs within the express warranty period. (Defendant’s Material Fact [“DMF”] No. 15 and 16.)

Plaintiff did not dispute these facts nor raise a triable issue of material fact as to whether sufficient parts or literature was available during the express warranty period. Plaintiff did not show any inference arose as to whether sufficient literature or parts were made available during the express warranty period. Accordingly, the motion is granted as to this issue.

Issue 3: Fourth Cause of Action – Breach of Implied Warranty of Merchantability (Civil Code §§ 1791.1 and 1794): Fails as a matter of law because the Subject Vehicle was safe, reliable, and fit for its ordinary purpose during the warranty period.

“The duration of the implied warranty of merchantability and where present the implied warranty of fitness shall be coextensive in duration with an express warranty which accompanies the consumer goods, provided the duration of the express warranty is reasonable; but in no event shall such implied warranty have a duration of less than 60 days nor more than one year following the sale of new consumer goods to a retail buyer.” (Civ. Code, § 1791.1, subd. (c); *see, Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1304.)

The implied warranty “could be breached after delivery...this is a change from the Uniform Commercial Code, under which the implied warranty could be breached only at the time of delivery.” (*Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1309; *see, Jones v. Credit Auto Center, Inc.* (2015) 237 Cal.App.4th Supp. 1, 9 [“a breach of the implied warranty of merchantability may be based on a defect which becomes known *after* a sale or delivery to a buyer.”].)

"The breach occurred when the latent defect came to light, which was within the time period set forth in Civil Code section 1795.5, subdivision (c)." (*Jones v. Credit Auto Center, Inc.* (2015) 237 Cal.App.4th Supp. 1, 10.)

Defendant met its initial burden to show no breach of the implied warranty of merchantability occurred within the first year of delivery. (DMF No. 18-21.)

Although Plaintiff contends the defects were latent, Plaintiff offers no evidence to raise a triable issue as to whether any alleged defect was latent. Plaintiff did not meet Plaintiff's shifted burden to raise a triable issue of material fact. The motion is granted as to this issue.

Issue 4: Fifth Cause of Action – Fraudulent Inducement / Concealment: Fails as a matter of law because Plaintiff cannot identify any actionable misrepresentation or omission by AHM, relied on no statements from AHM before leasing the vehicle, and admitted she would have leased the vehicle regardless.

The elements for a cause of action for deceit by concealment are: (1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage. (*Boschma v. Home Loan Center, Inc.* (2011) 198 Cal.App.4th 230, 248.)

"A duty to speak may arise in four ways: it may be directly imposed by statute or other prescriptive law; it may be voluntarily assumed by contractual undertaking; it may arise as an incident of a relationship between the defendant and the plaintiff; and it may arise as a result of other conduct by the defendant that makes it wrongful for him to remain silent." (*Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC* (2008) 162 Cal.App.4th 858, 867.)

The elements of promissory fraud or fraud in the inducement are (1) the defendant made a promise to the plaintiff, (2) at the time the promise was made, the defendant did not intend to perform the promise; (3) the defendant intended to cause the plaintiff to rely on the promise; (4) the plaintiff reasonably relied on the promise; and (5) the plaintiff was harmed as a result. (*Lazar v. Sup. Court* (1996) 12 Cal.4th 631, 638-639; *Muraoka v. Budget Rent-A-Car, Inc.* (1984) 160 Cal.App.3d 107, 119.)

Promissory fraud (aka false promise) is sometimes referred to as a claim of "fraudulent inducement." (See, *Agosta v. Astor* (2004) 120 Cal.App.4th 596, 603, citing *Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638 ["An action for promissory fraud may lie where a defendant fraudulently induces the plaintiff to enter into a contract."].)

"To establish a claim of fraudulent inducement, one must show that the defendant did not intend to honor its contractual promises when they were made." (*Food Safety Net Services v. Eco Safe Systems USA, Inc.* (2012) 209 Cal.App.4th 1118, 1131.)

Defendant did not meet its initial burden to show Plaintiff cannot prevail on this fifth cause of action or that Plaintiff has no evidence and cannot reasonably obtain evidence to establish an essential element of this cause of action. (*Aguilar v. Atlantic Richfield Co., supra*, 25 Cal.4th at pp. 854-855; *Union Bank v. Superior Court* (1995) 31 Cal.App.4th 573, 590; see *Sheiding v. Dinwiddie Constr. Co.* (1999) 69 Cal.App.4th 64, 80-81.)

		The Golden Rule of Summary Adjudication requires all material facts be set forth in the separate statement – “if it is not set forth in the separate statement, <i>it does not exist.</i>” (<i>United Community Church v. Garcin</i> (1991) 231 Cal.App.3d 327, 337.) Because Defendant did not meet its initial burden, the burden does not shift to Plaintiff to raise a triable issue of material fact. (<i>Consumer Cause, Inc. v. SmileCare</i> (2001) 91 Cal.App.4th 454, 468.) Accordingly, the motion is denied as to this issue. Issue 5: Claim for Punitive Damages: Fails because Plaintiff has no evidence of oppression, fraud, or malice by AHM. Defendant did not meet its initial burden on this issue. Although the parties addressed this issue in their memorandums, Defendant did not address this issue in Defendant’s separate statement. The Separate Statement in support of a motion must separately identify each claim for damages that is the subject of the motion and each supporting material fact claimed to be without dispute with respect to claim for damages that is the subject of the motion. (Cal. Rules of Ct., Rule 3.1350(d).) “The supporting papers shall include a separate statement setting forth plainly and concisely all material facts that the moving party contends are undisputed. Each of the material facts stated shall be followed by a reference to the supporting evidence. The failure to comply with this requirement of a separate statement may in the court’s discretion constitute a sufficient ground for denying the motion.” (Code Civ. Proc., § 437c, subd. (b)(1).) The Golden Rule of Summary Adjudication requires all material facts be set forth in the separate statement – “if it is not set forth in the separate statement, <i>it does not exist.</i>” (<i>United Community Church v. Garcin</i> (1991) 231 Cal.App.3d 327, 337.) Because Defendant did not meet its initial burden, the burden does not shift to Plaintiff to raise a triable issue of material fact. (<i>Consumer Cause, Inc. v. SmileCare</i> (2001) 91 Cal.App.4th 454, 468.) Accordingly, the motion is denied as to this issue. Defendant is ordered to give notice.
102	2023-01352224 Lindeman vs. FCA US, LLC	Motion to Substitute Plaintiffs’ Motion to Substitute Successor Trustee Ropey Trujillo in Place of Deceased Plaintiff, Charles Lindeman, is granted. “On motion after the death of a person who commenced an action or proceeding, the court shall allow a pending action or proceeding that does not abate to be continued by the decedent’s personal representative or, if none, by the decedent’s successor in interest.” (Code Civ. Proc., § 377.31.) Here, the Successor Trustee, Ropey Trujillo, has submitted a declaration that complies with all the requirements of CCP section 377.32. (ROA 164.) As such, the Court grants the motion and orders Ropey Trujillo, as Successor Trustee, be substituted for Charles

		Lindeman as a plaintiff in this action. Plaintiffs shall give notice of the ruling.
103	2024-01410627 First Bank of the Lake vs. ASM Bistro LLC	1. Motion to Vacate 2. Motion to Vacate (1) MOTION TO VACATE DEFAULT Defendant Haydee Docasar M.D., P.C.’s motion to vacate the 2/2/26 default judgment is denied. Code Civ. Proc. § 473(b) states the following, in pertinent part: “The court may, upon any terms as may be just, relieve a party or the party’s legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party’s mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.” Defendant’s motion is not timely. The six-month time limit in Code Civ. Proc., § 473(b) for discretionary relief runs from entry of <u>default</u>, not the entry of default judgment. (See <i>Rutan v. Summit Sports, Inc.</i> (1985) 173 Cal.App.3d 965, 970; <i>Kramer v. Traditional Escrow, Inc.</i> (2020) 56 Cal.App.5th 13, 39.) The motion was filed on 4/27/26. Default was entered on 10/10/24. (ROA 30.) In addition, Defendant failed to file a copy of the proposed responsive pleading, and more importantly, proof of service with the motion. (Code Civ. Proc., §§ 473(b), 1005(b); CRC, Rule 3.1300(a).) Furthermore, Defendant fails to establish excusable neglect or that the default judgment is void. Defendant states that she was engaged in the bankruptcy proceedings during the period in which a responsive pleading to this complaint was required, and thus those demands should excuse her conduct. This is not excusable neglect. (See e.g., <i>Davis v. Thayer</i> (1980) 113 Cal.App.3d 892, 905-906 (court found that it was not grounds for relief because defendant could not afford a lawyer or that he was preoccupied with the pending criminal proceedings against him as defending a criminal case does not prevent a person from defending a civil suit as well).) Contrary to Defendant’s arguments, Defendant Haydee Docasar’s Ch. 7 bankruptcy discharge as to her, individually, does not also discharge Haydee Docasar M.D., P.C. An individual is not the same as a corporation for bankruptcy purposes. There is no indication that Plaintiff’s service of summons was invalid or that the Court lacks jurisdiction. Thus, no showing has been made that the default judgment is void. Based on the foregoing, the motion is denied. The clerk shall give notice. (2) MOTION TO VACATE DEFAULT

		Defendant Alec Sergio Martin’s motion to vacate the 2/2/26 default judgment is denied. Code Civ. Proc. § 473(b) states the following, in pertinent part: “The court may, upon any terms as may be just, relieve a party or the party’s legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party’s mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.” Similar to the motion filed by Haydee Docasar M.D., P.C., Defendant Martin’s motion is also untimely. It was filed in May of 2026. Default was entered on 10/10/24. (ROA 30.) While opposed, no proof of service was filed, and the motion was not served. (Code Civ. Proc., § 1005(b; CRC, Rule 3.1300(a).) Plaintiff’s counsel states they obtained the motion online and that Defendant has refused their requests to serve Plaintiff with the motion. (Andonian Decl., ¶¶ 16-17 & Ex. H.) Defendant Martin declares that he was told that his signature on the guarantee did not actually impose any personal liability, among other things, excusing him from responding and seeking timely relief from default. (Martin Decl., ¶¶ 3-14.) This is directly contradictory to the language in the guaranty. Moreover, this does not demonstrate excusable neglect, especially given Plaintiff’s evidence that Martin knew of the default by March 2025, and specifically that Plaintiff would not stipulate to set it aside on 3/31/25. (Andonian Decl., ¶¶ 10-11 & Ex. F.) Martin waited more than a year to file his motion. Self-represented litigants must follow the same procedural rules as attorneys. (See <i>Nwosu v. Uba</i> (2004) 122 Cal.App.4th 1229, 1247; see also <i>Rappleyea v. Campbell</i> (1994) 8 Cal.4th 975, 985 [“A doctrine generally requiring or permitting exceptional treatment of parties who represent themselves would lead to a quagmire in the trial courts, and would be unfair to the other parties to litigation”].) Accordingly, the Court also denies Defendant Alec Sergio Martin’s motion. The clerk shall give notice.
104	2024-01395404 Gil vs. Volkswagen Group of America, Inc.	1. Motion for Attorneys’ Fees 2. Order to Show Cause re: Dismissal on Settled Case <u>Motion for Attorney Fees</u> Plaintiff Federico Gil’s motion for attorneys’ fees is granted. Plaintiff is awarded reasonable attorneys’ fees in the amount of \$23,245.50, against Defendant Volkswagen Group of America, Inc. Here, the Court determines that the hourly rates of Plaintiff’s attorneys, which range from \$400 to \$595, are reasonable and within the prevailing rates in the community for similar work. The Court declines to impose a rate of \$400 across-the-board as suggested by Defendant.

		With respect to the reasonableness of the hours, the Court also finds little support for Defendant’s contention that Plaintiff’s entries appear to be impermissibly duplicative or inconsistent with counsel’s claims, or unreasonably increased by Plaintiff’s counsel’s “gamesmanship.” However, after reviewing the time entries, the Court agrees there was a limited amount of duplication and inefficiency created by having multiple attorneys work on discrete tasks. Consequently, a reduction of \$1,187 is warranted. After this reduction, the Court finds Plaintiff reasonably incurred \$23,245.50 in attorneys’ fees. The Court declines to award Plaintiff a multiplier. The party seeking a fee enhancement bears the burden of showing why an enhancement is appropriate. (<i>Ketchum v. Moses, supra</i>, 24 Cal.4th at p. 1138.) The Court is not persuaded that Plaintiff’s requested enhancement is warranted for the prosecution of this action. For the foregoing reasons, the Court awards Plaintiff a total of \$23,245.50 in reasonable attorneys’ fees. <u>Order to Show Cause re: Dismissal on Settled Case</u> Unless counsel for either party appears at the hearing and objects, the Court will dismiss this matter without prejudice. Plaintiff shall give notice of each of the foregoing rulings.
106	2025-01504753 Schneider-Kidan vs. Estate of Leonard Tierney	1. Demurrer to Amended Complaint 2. Motion for Leave to File Amended Complaint 3. Motion for Leave to Intervene 4. Motion to Quash Service of Summons 5. Motion to Quash Service of Summons 6. Motion to Quash Service of Summons 7. Motion to Quash Service of Summons 8. Case Management Conference Plaintiff Tracy Lynn Schneider-Kidan’s motion for leave to file her proposed second amended complaint (“SAC”) is granted. [ROA #262.] Defendant Partners-Personnel Management, Inc.’s demurrer to Plaintiff’s first amended complaint (“FAC”) is moot. [ROA #98.] Proposed Intervenor Adam Kidan’s motion to intervene is denied. [ROA #190.] Defendant Madison Resource Funding, LLC’s motion to quash service of summons and complaint on it is granted. [ROA #84.] Defendant Tyler Tierney’s motion to quash service of summons and complaint on him is granted. [ROA #103.] The motion of defendant Estate of Leonard Tierney, by and through executory Mary Teirney, to quash service of summons and complaint is continued to 11/16/26. [ROA #157.] Defendant NESC Staffing, LLC’s motion to quash service is granted. [ROA #170.] Defendant Chartwell’s request for judicial notice are granted. [ROA ## 281, 283.] Facts

On September 9, 2025, Plaintiff Tracy Lynn Schneider-Kidan filed her first amended complaint (“FAC”) against Defendants Estate of Leonard Tierney, Richard Chipman, StaffInvest Holdings, LLC, Chartwell Staffing Services, Inc., Madison Resource Funding, LLC, Coast to Coast Staffing, LLC, NESC Staffing Corp., NESC Staffing LLC, Jack Madden, Partners Personnel Management Services, Inc., Tyler Tierney, Jonathon Tierney, Madison Resource Funding Corp., a/k/a Madison Resource Funding, LLC, and CSS Operating Corp., alleging causes of action for (1) Breach of Fiduciary Duty, (2) Fraud and Misrepresentation, (3) Conversion, (4) Declaratory Relief, and (5) Accounting and Constructive Trust.

Plaintiff alleges a hostile takeover of Plaintiff’s interest in Chartwell Staffing Services, Inc. Plaintiff alleges that Defendants Leonard Tierney, Richard Chipman, StaffInvest Holdings, and Madison Resource Funding Corp. and their affiliates coerced Plaintiff into signing corporate restructuring documents of extreme personal and financial distress, denied Plaintiff access to the books and records of Chartwell and its subsidiary CSS Operating Corp., and diverted assets to affiliated entities including Madison, NESC, NESC, LLC, StaffInvest, Coast-to-Coast Staffing, and the Leonard Tierney Irrevocable Trust and Estate.

This case was found related to the earlier filed case of *Adam R. Kidan v. Chartwell Staffing Services, Inc.*, et al., Orange County Superior Court Case No. 30-2021-01186369-CU-BC-CJC, (the “Kidan action”) on 4/22/26. [ROA #252.]

Both cases involve the alleged hostile takeover of Chartwell by Madison. Madison was Chartwell’s primary funder and business partner. According to Plaintiff here and Kidan in the Kidan action, after the shareholders of Chartwell (that is, Kidan and Schneider-Kidan) filed for divorce, Madison seized on the opportunity to destabilize Chartwell’s business and orchestrate a takeover.

In 2021, Kidan brought the Kidan action directly to challenge Madison’s acquisition of Chartwell, and derivatively to remedy the harm to Chartwell caused by Madison in the process through its breaches of contract and self-dealing. [See Kidan action third amended complaint (“Kidan TAC” – ROA # 1133).] Kidan sued, at least, Madison, Coast to Coast, Leonard Tierney, Chipman, Lilley Madison, and Lilly. [*Id.*] Chartwell is a nominal defendant. [*Id.*]

Plaintiff’s Motion for Leave to File Proposed Second Amended Complaint (“SAC”)
Legal Standard

The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. Code Civ. Proc. § 473(a)(1). The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code. Code of Civ. Proc. § 473(a)(1). Additionally, any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order. Code of Civ. Proc. § 576.

Ordinarily, the court does not consider the validity of the proposed amended pleading in deciding whether to grant leave to amend. *Kittredge Sports Co. v. Superior Court (Marker, U.S.A.)* (1989) 213 Cal.App.3d 1045, 1048; Cal. Prac. Guide, *Civil Procedure before trial* (Rutter) 6:644. Grounds for demurrer or motion to strike are premature. *Id.* After leave to amend is granted, the opposing party will have the opportunity to attack the validity of the

amended pleading. *Id.* See *Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 760 (“[W]e believe that the better course of action would have been to allow Atkinson to amend the complaint and then let the parties test its legal sufficiency in other appropriate proceedings”) (citing *Kittredge*).

A motion to amend a pleading before trial must: (1) include a copy of the proposed amendment or amended pleading; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, by page, paragraph, and line number, the additional allegations are located. CRC 3.1324(a). A separate declaration must accompany the motion and must specify: (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. CRC 3.1324(b).

California courts generally allow great liberality, at all stages of the proceeding, in permitting the amendment of pleadings in order to resolve cases on their merits. *IMO Development Corp. v. Dow Corning* (1982) 135 Cal.App.3d 451, 461. This liberality only applies so long as there is no prejudice to the opposing party. *Higgins v. Del Faro* (1981) 123 Cal.App.3d 558, 564. Denial of leave to amend is appropriate where inexcusable delay and probable prejudice to the opposing party is shown. This may happen where a proposed amendment opens up an entirely new field of inquiry without any satisfactory explanation as to why the major change in point of attack had not been made long before trial. *Estate of Murphy v. Gulf Ins. Co.* (1978) 82 Cal.App.3d 304, 311.

If the party seeking the amendment has been dilatory, and the delay has prejudiced the opposing party, the judge has discretion to deny leave to amend. *Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 490; *Melican v. Regents of Univ. of Calif.* (2007) 151 Cal.App.4th 168, 176; *Fisher v. Larsen* (1982) 138 Cal.App.3d 627, 649.

As a general rule, the additional time and money of conducting non-duplicative discovery is not considered prejudice unless discovery has already closed and/or trial is set to begin:

Where the trial date is set, the jury is about to be impaneled, counsel, the parties, the trial court, and the witnesses have blocked the time, and the only way to avoid prejudice to the opposing party is to continue the trial date to allow further discovery, refusal of leave to amend cannot be an abuse of discretion.

Magpali v. Farmers Group, Inc. (1996) 47 Cal.App.4th 1024, 488.

Discussion

Plaintiff has essentially complied with the procedural requirements of California Rule of Court 3.1324. She has submitted the proposed second amended complaint. [England Decl. (ROA #256), Ex. A.] Plaintiff’s counsel explains “Plaintiff’s proposed second amended complaint is a comprehensive statement of her claims and the factual allegations behind them, and is brought to help clarify the overlap with the related proceeding. Because the proposed amendment is so comprehensive, a redline showing the changes is of no practical use and therefore is not attached.” [*Id.*, ¶ 3.]

Plaintiff, formerly a self-represented litigant, now has counsel and understandably seeks to present her claims as a lawyer can craft them. This is ground enough to allow amendment

given the liberal policy for amendments.

Defendant Chartwell makes a number of substantive arguments that go to the merits of Plaintiff's claims. These arguments rely on facts and issues in dispute that can only be resolved through further litigation. Statute of limitations and standing are not issues generally appropriate to decide on the pleadings and they are not clear enough on the current record so as to justify denial of amendment on that basis.

No party has asserted cognizable prejudice as a result of the proposed amendment.

Accordingly, Plaintiff's motion for leave to file her proposed SAC is granted. Defendant Partners-Personnel Management, Inc.'s demurrer to her FAC is therefore moot.

Adam Kidan's Motion to Intervene

Legal Standard

Intervention is governed by Code of Civil Procedure section 387. Subdivision (a) of section 387 states in relevant part, "[u]pon timely application, any person, who has an interest in the matter in litigation, or in the success of either of the parties, or an interest against both, may intervene in the action or proceeding."

Intervention is mandatory (as of right) or permissive.

Mandatory intervention applies if (1) a provision of law confers an unconditional right to intervene or (2) the person seeking intervention claims an interest relating to the property or transaction that is the subject of the action and that person is so situated that the disposition of the action may impair or impede that person's ability to protect that interest, unless that person's interest is adequately represented by one or more of the existing parties. Code Civ. Proc. §387(d)(1).

Permissive intervention applies where:

- 1) the intervenor has a direct interest in the litigation;
 - 2) intervention will not enlarge the issues raised by the original parties, and
 - 3) the reasons for intervention outweigh any opposition by the existing parties.
- Code Civ. Proc. § 387(d)(2); *Truck Ins. Exch. v. Superior Court* (1997) 60 Cal.App.4th 342, 346.

A motion or application for leave to intervene must include a copy of the proposed complaint or answer in intervention. Code Civ. Proc. § 387(c). *See Sutter Health Uninsured Pricing Cases* (2009) 171 Cal.App.4th 495, 513 (affirming denial of leave to intervene where proposed intervenor did not submit proposed complaint in intervention).

Discussion

With his motion to intervene, Kidan submitted a proposed motion to stay but no proposed complaint or answer in intervention. [Robinson Decl. (ROA #190), ¶ 2 and Ex. 1.]

A nonparty shall petition the court for leave to intervene by noticed motion or ex parte application. The petition shall include a copy of the proposed complaint in intervention or answer in intervention and set forth the grounds upon which intervention rests.

Code Civ. Proc. § 387(c).

Stowers failed to adhere to this procedural rule by preparing a complaint in intervention, therefore the trial court properly denied his motion. (See *Tokio Marine & Fire Ins. Corp. v. Western Pacific Roofing Corp.* (1999) 75 Cal.App.4th 110, 120, 89 Cal.Rptr.2d 1 [“**fundamental prerequisite**” is the filing of a complaint in intervention which is then served on parties]; *Muller v. Robinson* (1961) 193 Cal.App.2d 835, 837–838, 14 Cal.Rptr. 693 [where “appellant did not file his proposed complaint in intervention” trial court was justified in denying the motion to intervene].)

Sutter Health Uninsured Pricing Cases (2009) 171 Cal.App.4th 495, 513 (bold added).

Kidan has failed to comply with the procedural requirements for intervention by failing to submit a proposed complaint (or answer) in intervention. His motion to intervene is therefore denied.

Motions to Quash for Improper Service

The grounds for the motions to quash by Madison Resource Funding and NESC Staffing are improper service. [ROA ## 84, 170.]

Legal Standard

A motion to quash service of summons and complaint under Code Civ. Proc. § 418.10 is the proper method to challenge inadequate and ineffective service of a summons and complaint. Code Civ. Proc. § 418.10(a)(1); Weil & Brown, *Cal. Prac. Guide*, Civ. Proc. before Trial (Rutter 2012) § 4:413.

Upon such a motion, it is the plaintiff’s burden of proof to establish facts showing effective service. *Summers v. McClanahan* (2006) 140 Cal.App.4th 403, 413; *Dill v. Berquist* (1994) 24 Cal.App.4th 1426, 1439-1440.

Discussion

NESC’s motion is unopposed. As for Madison Resource’s motion to quash, for the reasons previously express by the Court, the Court declines to consider the omnibus opposition and supplemental oppositions {ROA # 141, 163} filed by Plaintiff. [See ROA ##187, 227, 230.]

In the absence of a factually and evidentiarily supported opposition, Plaintiff has not met her burden of proof.

Accordingly, NESC’s and Madison Resource’s motions to quash are granted.

Motions to Quash for Insufficient Minimum Contacts

Tyler Tierney and the Estate of Leonard Tierney each move to quash on the ground Leonard and Tyler do not have sufficient minimum contacts with California for the court to exercise personal jurisdiction over them. [ROA ## 103, 157.]

A motion to quash service of summons and complaint under Code Civ. Proc. § 418.10 is the proper method to challenge the court’s over the defendant. Code Civ. Proc. § 418.10(a)(1); Weil & Brown, *Cal. Prac. Guide*, Civ. Proc. before Trial (Rutter 2012) § 4:413. This includes lack of jurisdiction due to ineffective service *and* for insufficient minimum contacts. Weil & Brown, *Cal. Prac. Guide*, Civ. Proc. before Trial (Rutter 2024) §§ 3:165, 4:411; *Mannesmann DeMag, Ltd. v. Superior Court* (1985) 172 Cal.App.3d 1118, 1124; *Roy v. Superior Court* (2005) 127 Cal.App.4th 337, 345.

Legal Standard

A nonresident defendant may not be called upon to defend in a foreign forum unless he or she has minimal contacts with that state to exercise power over that party. *See, Hanson v. Denckla* (1958) 357 U.S. 235, 251.

A nonresident defendant has a liberty interest in not being subject to the judgments of a forum with which he or she has established no meaningful minimum contacts. *See Vons Companies Inc. v. Seabest Foods, Inc.* (1996) 14 Cal. 4th 434, 445, citing *Burger King Corp. v. Rudzewicz* (1985) 471 U.S. 462, 471 to 472.

The plaintiff bears the burden of proving that a nonresident defendant has sufficient contacts with the forum state to support personal jurisdiction. *See, Aquila, Inc. v. Superior Court* (2007) 148 Cal. App. 4th 556, 570. The plaintiff must demonstrate by a preponderance of the evidence that all jurisdictional requirements are met. *Ziller Electronics Lab GmbH v. Superior Court* (1988) 206 Cal. App. 3d 1222, 1232. If the plaintiff establishes that the defendant has minimum contacts with the forum state, the burden shifts to the defendant to demonstrate that the exercise of jurisdiction would be unreasonable. *Stone v. Texas* (1999) 76 Cal. App. 4th 1043, 1048.

In conjunction with the rules regarding a plaintiff's "initial" burden of proof, it has also been stated that the moving defendant has some burden to present evidence of the fact of no minimum contacts in order effectively to raise the question of personal jurisdiction. *School Dist. of Okaloosa County v. Superior Court* (1997) 58 Cal.App.4th 1126, 1131. *See also Factor Health Management v. Superior Court* (2005) 132 Cal.App.4th 246, 250 ("A motion to quash under section 418.10 must be supported by evidence on the issue of the defendant's contacts with the state. (*School Dist. Of Okaloosa County v. Superior Court* (1997) 58 Cal.App.4th 1126, 1131, 68 Cal.Rptr.2d 612.)").

In any event, to meet his burden, the plaintiff must demonstrate by a preponderance of the evidence that all jurisdictional requirements are met. *Ziller Electronics Lab GmbH v. Superior Court* (1988) 206 Cal.App.3d 1222, 1232. This must be done with declarations that offer more than vague assertions of ultimate facts; the declarations must offer specific evidentiary facts permitting a court to form an independent conclusion on the issue of jurisdiction. *In re Automobile Antitrust Cases I and II* (2005) 135 Cal.App.4th 100, 110.

If the plaintiff establishes that the defendant has minimum contacts with the forum state, the burden shifts to the defendant to demonstrate that the exercise of jurisdiction would be unreasonable. *Stone v. Texas* (1999) 76 Cal. App. 4th 1043, 1048.

Jurisdictional facts must be proved by competent evidence – that is, declarations by competent witnesses. *Evangelize China Fellowship, Inc. v. Evangelize China Fellowship* (1983) 146 Cal.App.3d 440, 444. If the parties' declarations conflict on the jurisdictional fact, the court decides whom to believe. *Id.* Unverified pleadings have no evidentiary value in determining personal jurisdiction but can be relevant to determination of the cause of action and whether it arises out of the defendant's alleged local activities. *Mihlon v. Superior Court* (1985) 169 Cal.App.3d 703, 710.

Personal jurisdiction may be general or specific.

A nonresident defendant may be subject to general jurisdiction if his or her contacts with the forum are substantial, continuous and systematic. *Id.*, at 445, citing *Perkins v. Benguet Mining Co.* (1952) 342 U.S. 437, 445.

Apart from general jurisdiction, a nonresident defendant may be subject to specific

jurisdiction if: (1) the defendant has purposefully availed himself or herself of forum benefits, and (2) the controversy is related to or arises out of the defendant's contacts with the forum. *See, Vons*, at 446, citing *Burger King Corp. v. Rudzewicz* (1985) 471 U.S. 462, 472-73. The assertion of jurisdiction over the defendant must also be reasonable – that is, comport with fair play and substantial justice. *Id.* at 477-78. Discussing *Burger King*, the California Supreme Court in *Vons* explained that a state may exercise specific jurisdiction over a nonresident who purposefully avails himself or herself of the forum's benefits because the state has a manifest interest in providing its residents with a forum for redressing injuries inflicted by out-of-state actors, and where individuals derive economic benefit from interstate activities it would be unfair to allow them to escape having to account in other states for the consequences that arise from such activities. *See Vons*, at 447. The *Vons* court further noted that modern transportation and communications makes defending in another state a much less burdensome proposition today. *Id.*

Discussion

For his motion, Tyler Tierney declares he is a resident of New Hampshire and does not reside in California, own property in California, or pay taxes in California. He is employed by Madison Resource Funding, LLC ("Madison"), which is a New Hampshire LLC with a principle place of business in New Hampshire. He was first employed by Madison in 2019 and worked (and continues to work) in sales. Tyler Tierney further declares that he had no involvement in any transaction, dealings or agreement alleged by Plaintiff. He did not become a Manager of Madison until 2025. And, though, he became a Director of Chartwell Staffing Services, Inc. ("Chartwell") in 2025, he had no involvement with Chartwell prior to that time. To his knowledge, he has never met, spoken with, or otherwise interacted or communicated with the Plaintiff, whether in California or elsewhere. [Tyler Tierney Decl. (ROA #103), ¶¶ 2-6.]

Again, the Court declines to consider Plaintiff's omnibus opposition or supplemental opposition. In any event, Plaintiff has not presented admissible evidence of California contacts.

In the absence of any evidentiary showing of other connections between Tyler and California, or acts by Tyler directed at California, Plaintiff has not met her burden of proof. Accordingly, Tyler Tierney's motion to quash is granted.

The Estate of Leonard Tierney has renewed Leonard's motion to quash in the Kidan action. [Kidan Action ROA #1202.] That motion is set for hearing on 11/16/26. The motion to quash in this action is continued to 11/16/26 to be heard together with the motion in the Kidan action.

The case management conference is continued to November 16, 2026 at 2:00 p.m. in Department C27.

Plaintiff is ordered to give notice of all of the foregoing rulings.